

1607
May 6

In Camera Stellata, coram Consilio ibidem, Mercurij, 6 Maij, 1607.¹

EARL OF
LINCOLN
v.
DIMMOCK
—
Riot, etc.

Breaking
a pound

Breaking
down a pale
at night

[p. 305]

Sentence

'Cause of hearinge *enter* Th'erle of Lincolne, pl., againste S^r Edwarde Dimmocke, & other, his seruauntes, Defendauntes,² for 2 ryottes & a practise or misdemeanor in ioyninge together to delyuer a petition to y^e kinge againste the pl. the firste riot was in breakinge a pounce & takinge forceabyle Cattelle from thence, (w^{ch} are sayde to be *in Custodia legis*, & therefore to be repleuid); th'other riote was in breakinge downe 20 rodde of sawed pale in y^e nighte time, digginge vp the postes, & Carryinge them into y^e defendaunte's yarde. S^r Edwarde Dimmocke denieth all vpon his oathe. the wytnesses proue that th'other defendauntes did saye that they did it by y^e Commaundement^{te} or procuremente of S^r Edwarde Dimmocke, or else they thinke they durste not haue bene so bolde:

'For the practise, one Dethicke, one of the Defendauntes, was sentenced for y^e author of it & y^e agente in it, & he & th'other defendauntes were fyned 40^{li}, some 50^{li}, some 60^{li}, & imprisonm^{te}: but S^r Edwarde Dimmocke it seemethe was acquyted by most voyces, albeit Condempned by some.'

1607
June 10

In Camera Stellata, coram Consilio ibidem, Mercurij, 10 Junij, 1607.³

Death of Sir
John Popham, Lord
Chief Justice of the
King's
Bench

While the Courte was sitting, 'Newes was broughte that S^r John Popham,⁴ the Lo. Cheife Justice of Englaunde,

¹ Nine Councillors and Judges were present.

² See a cross bill between the same parties, *ante*, p. 233.

³ Eight Councillors and Judges were present.

⁴ Sir John Popham was born about 1531; educated at Baliol Coll., Oxford; called to the Bar at the Middle Temple; Autumn Reader, 1568; Serjeant at Law, 1578; Solicitor-gen., 1579; Attorney-gen. and Treasurer of his Inn, 1581; Speaker of

the House of Commons, 1581; Lord Chief Justice of the King's Bench, 1592; he died June 10, 1607 (aged 76), as stated in the text, and was buried at Wellington, co. Somerset, where he had built himself a house, and where he founded a hospital for the maintenance of 12 poor men and women and the education of two poor children. See Foss's *Judges*, Chalmers' *Biog. Dict.*, Collinson's *Hist. of Somerset*, ii. 483; etc.